

		chemotherapy treatment ended, is unpersuasive. Plaintiff's ability to travel in September 2024 does not demonstrate she has the ability to meaningfully participate at a trial scheduled to occur nearly two years later. Third, and most importantly, Nicole Blatt's declaration is uncontroverted and based on her personal knowledge of Plaintiff's current condition rather than merely on information and belief. (See Code Civ. Proc., § 36.5 [allowing attorney declaration based upon information and belief as evidence of moving party's health].) Further, "[t]he heightened clear and convincing proof standard is required for motions seeking discretionary grants of preference under [Code Civ. Proc. Section 36], subdivision (d), but not for motions seeking mandatory preference under subdivision (a)." (<i>Fox, supra</i>, 21 Cal.App.5th at 534.) Thus, Plaintiff has presented sufficient evidence of her health condition. Defendants also argue they will be prejudiced if the motion is granted. However, weighing prejudice is not part of the § 36(a) analysis, as Defendants themselves acknowledge. (See Opp. p. 4:17-18; <i>Swaithes, supra</i>, 212 Cal.App.3d at p. 1085 ["The trial court has no power to balance the differing interests of opposing litigants in applying the provision."].) The court declines Defendants' invitation to do so. Lastly, the parties' respective discussions of delay and the status of discovery is irrelevant. "Failure to complete discovery or other pre-trial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36." (<i>Swaithes, supra</i>, 212 Cal.App.3d at p. 1085.) Based on the foregoing, the motion for preference is GRANTED. Trial is set for 9/18/26 (108th day) at 9:00 a.m. in Dept. C32. Plaintiff to give notice.
4.	GUNN VS. GREEN MEADOWS HOME HEALTH CARE, INC 2023-01370855	1. MOTION FOR LEAVE TO FILE AMENDED COMPLAINT Plaintiff's Motion to Amend Complaint is GRANTED. Code of Civil Procedure section 473(a)(1) states, "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

“There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding.” (*Sullivan v. City of Sacramento* (1987) 190 Cal.App.3d 1070, 1081.)

Plaintiff seeks leave to amend to correct a typographical error regarding Plaintiff’s age. Plaintiff incorrectly alleged at paragraph 95 of the Complaint that Plaintiff was 82 years old at the time of Defendants’ conduct, when in fact Plaintiff was approximately 57 at the time of the events in the Complaint. Paragraph 4 of the Complaint stated Plaintiff was 59 years old. Plaintiff seeks leave to correct her age in paragraph 95.

Defendant contends it has suffered prejudice from litigating Plaintiff’s elder abuse allegations, which are inapplicable given Plaintiff’s true age. Defendant also contends Plaintiff unduly delayed in making the amendment.

Trial is set for 7/23/26.

Given that Defendant is already aware of the facts underlying the amendment, i.e. Plaintiff’s true age, Defendant has failed to demonstrate prejudice from the amendment. Therefore, the motion is granted. Plaintiff shall file and serve the proposed amended complaint within ten days.

2. MOTION TO EXCLUDE EXPERTS

Defendant’s Motion to Exclude Expert Witnesses is GRANTED.

Defendant seeks to exclude Plaintiff’s expert witnesses from testifying at trial because Plaintiff has failed to cooperate with the experts’ depositions.

Defendant’s counsel declares that Plaintiff filed expert declarations of Irina Lewis, RN, and Fadi Saba, M.D., in opposition to summary judgment. Plaintiff identified those experts as well as Lisa Contreras, RN, in her expert designation served on 5/22/25.

Defendant contacted Plaintiff’s counsel multiple times and noticed the depositions of Plaintiff’s experts, but Plaintiff’s counsel did not cooperate or present the experts for deposition. (Jackson Decl., ¶¶ 4-9.) The day before the noticed depositions on 11/5/25, Plaintiff’s counsel stated the depositions would need to be rescheduled, but Plaintiff’s counsel did not respond to Defendant’s request for alternate dates. (¶¶ 10-11.) Defendant’s counsel declares they cannot adequately prepare for trial without taking Plaintiff’s expert depositions. (¶ 16.)

The motion is unopposed as of 5/27/26.

Defendant cites *Karlsson v. Ford Motor Co.* (2006) 140 Cal.App.4th 1202, 1214, which holds:

“Misuse of the discovery process may result in the imposition of a variety of sanctions. These include payment of costs, sanctions barring the introduction of certain evidence, sanctions deeming that certain issues are determined against the offending party, and sanctions terminating an action in favor of the aggrieved party. (Code Civ. Proc., §§ 2023.020, 2023.030.) Misuse of the discovery process includes failing to respond or submit to authorized discovery, providing evasive discovery responses, disobeying a court order to provide discovery, unsuccessfully making or opposing discovery motions without substantial justification, and failing to meet and confer in good faith to resolve a discovery dispute when required by statute to do so. (Code Civ. Proc., § 2023.010, subds. (d)-(i).) The court may impose sanctions ‘[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title....’ (Code Civ. Proc., § 2023.030.)”

Quoted portions of *Karlsson*, *supra*, 140 Cal.App.4th at 1214-1217 cited in Defendant’s brief at pp. 8-9 are not found in the cited portion of the *Karlsson* decision. The Court is unable to find the quoted language in a search of published California opinions. Defendant’s counsel shall be prepared to explain this discrepancy at the hearing including whether the mistake was the result of using generative A.I.

Nonetheless, California law is clear that it is within the Court’s discretion to exclude Plaintiff’s experts at trial based on Plaintiff’s failure to produce them for deposition. (See Code Civ. Proc. §§ 2023.010, 2023.030.) For instance, *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992 (cleaned up), holds, “The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should attempt to tailor the sanction to the harm caused by the withheld discovery. The trial court cannot impose sanctions for misuse of the discovery process as a punishment. The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.”

The motion is granted. Plaintiff has not explained her failure/refusal to allow her expert witnesses to be deposed, leaving Defendant and its witnesses unable to prepare for trial which is set to begin in less than two months. Moreover, Plaintiff has not shown lesser sanctions are appropriate because Defendant’s counsel has made numerous efforts to schedule the depositions without success and it appears

		unlikely lesser sanctions would be effective. Therefore, it would be prejudicial to Defendant to allow Plaintiff to present expert witness testimony at trial.
6.	EMERSON VS. ROBSON 2025-01503050	DEMURRER TO CROSS-COMPLAINT Plaintiff/Cross-Defendant August Emerson’s Demurrer to Defendants/Cross-Complainants Gary Robson and Ingbritt Robson’s Cross-Complaint is OVERRULED. “A demurrer to a complaint or cross-complaint may be taken to the whole complaint or cross-complaint or to any of the causes of action stated therein.” (Code Civ. Proc., § 430.50(a).) If Emerson wished to demur to specific causes of action in the Cross-Complaint he must comply with California Rules of Court 3.1320(a) which requires each ground be stated in a separate paragraph. A demurrer to a complaint as a whole “must not be sustained if the pleading states facts from which any liability results, although not for some or all of the relief sought to be obtained.” (<i>California Trust Co. v. Cohn</i> (1932) 214 Cal. 619, 628; see also <i>Warren v. Atchison, T. & S. F. Ry. Co.</i> (1971) 19 Cal.App.3d 24, 29.) Emerson’s only stated ground for demurrer is: “Defendant generally demurs to the cross-complaint complaint filed on the grounds the pleading does not state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure § 430.10(e).” Emerson provides no separate paragraphs attacking only certain causes of action. Thus, the demurrer is to the Cross-Complaint as a whole and must be overruled if any causes of action survive the demurrer. Here, Emerson failed to challenge and expressly stated the 1st and 2nd causes of action were not the subject of the demurrer. (Mot., p. 6.) Thus, the 1st and 2nd causes of action survive the demurrer. Therefore, Emerson’s demurrer to the entire Cross-Complaint must be overruled.
7.	SCHEFFLER VS. CALIFORNIA DELUXE WINDOWS INDUSTRIES, INC. 2025-01510512	DEMURRER TO ANSWER Plaintiffs Dale Scheffler and Cindy Scheffler’s Demurrer to Defendant California Deluxe Windows Industries, Inc.’s Answer is SUSTAINED in part with 20 days leave to amend and OVERRULED in part. The demurrer is sustained as to each cause of action on the ground the affirmative defenses fail to “refer to the causes of action which they are intended to answer” as required by Code of Civil Procedure, section 431.30(g). Defendant’s 4th affirmative defense seeks to bar all recovery because Plaintiffs’ negligence was active or primary while Defendant’s negligence could only be passive or secondary.